quested to study the possibilities for the elimination of unnecessary circuits, facilities and offices and to report to the Board its recommendations for closure of any such specific circuits, facilities or offices.

§ 1720.6 *Discontinuance of non-telegraphic services.* Effective December 22, 1942, domestic telegraph carriers shall discontinue all non-telegraphic services including but not limited to, errand, distribution, remittance, installment payments, shopping, and messenger service (except messenger service to telephone companies to call non-subscribers to the telephone), sale of travelers' checks, sale of mail money orders, and acceptance of express packages.

§ 1720.7 *Discontinuance of holiday greeting and congratulatory messages.* Effective December 22, 1942, no domestic telegraph carrier shall accept for transmission any message both originating at and addresed to points within the continental United States of felicitation or congratulation, including but not limited to, greetings for Christmas, New Year, Easter, Father's Day, Jewish New Year, Mother's Day, Thanksgiving, Valentine's Day, congratulations on the birth of a child, graduations, weddings, anniversaries and birthdays: *Provided, however,* That the provisions of this paragraph shall not apply to messages to or from members of the armed forces of the United States or its allies.

§ 1720.8 *Franks, deadhead and free service messages.* The Federal Communications Commission is requested and authorized to develop a plan for the curtailment of the use of franks and deadhead messages and the elimination of "free service" messages and to report its specific recommendations to the Board.

§ 1720.9 *Periodic reports of current state of telegraph service.* Three months after the date of this order and periodically each three months thereafter the Commission is requested to report to the Board the current state of service being rendered by the telegraph industry together with any recommendations for improvement of such service in the interest of the war effort.

Subject to such further order as the Board may deem appropriate.

NOTE: This order is identical to Order No. 25-C (7 F.R. 10794) except for the proviso which has been added to § 1720.7.

BOARD OF WAR COMMUNICATIONS,
PAUL A. PORTER, *Chairman.*

Attest: May 4, 1945.

HERBERT E. GASTON,
*Secretary.*

[F. R. Doc. 45-7602; Filed, May 9, 1945; 9:45 a. m.]

## TITLE 43—PUBLIC LANDS: INTERIOR

### Chapter I—General Land Office

### PART 192—OIL AND GAS LEASES

[Circular 1595]

SCHEDULE OF ROYALTY RATES

Line 14 of the schedule of royalty rates per barrel of oil, section 2 (e) (1) of the form of oil and gas lease, in § 192.28 and in paragraph (a) of § 192.55 (CFR, Circ. 1386, May 7, 1936) is hereby amended to read as follows:

Over 400 the royalty shall be 25 percent.

The last seven lines in the royalty schedules of both sections are deleted.

(Sec. 32, 41 Stat. 450, 30 U.S.C. 181; 49 Stat. 674)

FRED W. JOHNSON,
*Commissioner.*

Approved: May 3, 1945.

OSCAR L. CHAPMAN,
*Assistant Secretary.*

[F. R. Doc. 45-7580; Filed, May 8, 1945; 2:19 p. m.]

### Appendix—Public Land Orders

[Public Land Order 276]

NEW MEXICO

CORRECTING AN ERROR IN DESCRIPTION OF CERTAIN LANDS TRANSFERRED FROM SECRETARY OF AGRICULTURE TO SECRETARY OF INTERIOR BY EXECUTIVE ORDER 7792

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, and in order to correct an error occurring in the description of certain lands transferred from the Secretary of Agriculture to the Secretary of the Interior by Executive Order No. 7792 of January 18, 1938, *It is hereby ordered as follows:*

The lands described in the said Executive Order No. 7792 under the center heading "Isleta Project, LI-NM 11" as lots 1 and 2, NE¼, and E½NW¼, Sec. 6, T. 8 N., R. 1 E., New Mexico Principal Meridian, are hereby described as lots 1 and 2, NE¼, and E½NW¼, Sec. 6, T. 8 N., R. 2 E., New Mexico Principal Meridian.

This order shall be effective as of January 18, 1938.

HAROLD L. ICKES,
*Secretary of the Interior.*

APRIL 30, 1945.

[F. R. Doc. 45-7581; Filed, May 8, 1945; 2:19 p. m.]

## *Notices*

## DEPARTMENT OF THE INTERIOR.

### Office of the Secretary.

[Order 2051]

EBENSBURG COAL CO., ET AL.

POSSESSION OF COAL MINES

By virtue of the authority vested in me by the President of the United States by Executive Order No. 9536, dated April 10, 1945, and having determined that a strike or work stoppage has occurred at each and all of the coal mines listed in Appendix A, attached hereto and made a part hereof, I do hereby, effective forthwith, take possession of each and all of such coal mines, including any and all real and personal property, franchises, rights, facilities, funds and other assets used in connection with the operation of such mines.

The regulations for the operation of coal mines under Government control, as amended (8 F.R. 6655, 10712, 11344, 17339), heretofore issued by me, together with such further regulations as may from time to time be issued, shall in all respects be applicable to the mines possession of which is taken by this order.

The President of each of the mining companies operating the mines listed in Appendix A (or if there is no president, its chief executive officer) is hereby, and until further notice, designated operating manager for the United States for each such mine. Unless advice to the contrary is received within ten days, the aforesaid President (or chief executive officer) shall be deemed to have accepted such designation. As operating manager for the United States, he is authorized and directed to operate any and all such mines in accordance with the aforementioned regulations for the operation of coal mines under Government control, and such further regulations as may from time to time be issued, and to do all things necessary and appropriate for the operation of such mines and for the production, distribution and sale of their products.

The operating manager for the United States shall forthwith fly the flag of the United States at each of the mining properties listed in Appendix A and shall conspicuously display at each of such properties copies of a poster to be supplied by the Department of the Interior and reading:

NOTICE

In accordance with the proclamation of the President of the United States, Government possession of the coal mines of this mining company has been taken by Order of the Secretary of the Interior.

HAROLD L. ICKES,
*Secretary of the Interior.*

MAY 7, 1945.

DISTRICT 1

| *Name and address of company and name of mine* | *Location or P. O. address of mine* |
|---|---|
| Ebensburg Coal Co., 123 So. Broad St., Philadelphia, Pa.; Colver No. 1. | Colver, Pa. |
| Carrolltown Coal Co.; Victor 9. | St. Benedict, Pa. |
| Barnes and Tucker Co., 123 So. Broad St., Philadelphia, Pa.; Lancashire 15. | Bakerton, Pa. |
| Vinton Coal & Coke Co., 570 Lexington Ave., New York 22, N. Y.: | |
| Vinton No. 6 | Vintondale, Pa. |
| Vinton No. 1 | Vintondale, Pa. |
| Monroe Coal Mining Co., 1617 Pennsylvania Bldg., Philadelphia, Pa.; Revloc. | Revloc, Pa. |

DISTRICT 2

| | |
|---|---|
| Republic Steel Corp., 1630 Republic Bldg., Cleveland, Ohio: | |
| Clyde No. 1 | Fredericktown, Pa. |
| Clyde No. 3 | Fredericktown, Pa. |

DISTRICT 2—Continued

| *Name and address of company and name of mine* | *Location or P. O. address of mine* |
|---|---|
| Cochran Coal Co., 34 West Fourth St., Williamsport, Pa.; Cochran No. 1. | Salina, Pa. |
| Pittsburgh Coal Co., P. O. Box 146, Pittsburgh, Pa.: | |
| Henderson | Hendersonville, Pa. |
| Montour No. 4 | Lawrence, Pa. |
| Westland | Westland, Pa. |
| Lindley | Canonburg, Pa. |
| Crescent | California, Pa. |
| Mather Collieries (Pickands, Mather & Co.), Mather, Pa.; Mather. | Mather, Pa. |

DISTRICT 4

| | |
|---|---|
| Mine Five Murray Co., Athens, Ohio; Mine No. 5. | Trimble Twp., Ohio. |
| Buckingham Coal Co., Congo, Ohio; Mine No. 219. | Congo, Ohio. |

DISTRICT 8

| | |
|---|---|
| Carbon Fuel Co., 1310 Kanawha Valley Bldg., Charleston, W. Va.: | |
| Mine No. 5 | Jockin, W. Va. |
| Mine No. 9 | Wevaco, W. Va. |
| Birchton Coal Co., First National Bank Bldg., Huntington, W. Va.; Birchton. | Birchton, W. Va. |
| Princess Dorothy Coal Co., Eunice, W. Va.; Princess Dorothy. | Eunice, W. Va. |
| Elk Horn Coal Corp., 308 Union Bldg., Charleston, W. Va.; Mine No. 28. | Wayland, Ky. |
| Gatliff Coal Co., Williamsburg, Ky.: | |
| Gatliff | Gatliff, Ky. |
| Blue Gem | Gatliff, Ky. |
| Ester and Effie Croley, Gatliff, Ky.; Mammoth Blue Gem. | Mammoth, Ky. |
| Jellico Coal Mining Co., Mount Ash, Ky.; Mount Ash. | Mount Ash, Ky. |
| Ridgeview Coal Co., Ridgeview, W. Va.; Ridgeview. | Ridgeview, W. Va. |
| Wyatt Coal Co., Box 367, Charleston, W. Va.; Laing No. 2. | Cane Fork, W. Va. |

DISTRICT 9

| | |
|---|---|
| Pacific Coal Co., Central City, Ky.; Lakeside No. 2. | Central City, Ky. |
| Bevier Lamb Mining Co., Bevier, Ky.; Mine No. 3. | Bevier, Ky. |

DISTRICT 10

| | |
|---|---|
| Old Ben Coal Corp., 230 So. Clark St., Chicago, Ill.; Mine No. 14. | Christopher, Ill. |
| Chicago & Harrisburg Coal Co., % Peabody Coal Co., 231 So. LaSalle St., Chicago, Ill.; Peabody No. 24. | Westville, Ill. |

DISTRICT 13

| | |
|---|---|
| Tennessee Consolidated Coal Co., Tracy City, Tenn.; Palmer. | Tracy City, Tenn. |

[F. R. Doc. 45-7579; Filed, May 8, 1945; 2:19 p. m.]

[Order 2052]

GREAT VALLEY ANTHRACITE COAL CORP. AND SUPERIOR ANTHRACITE MINE, INC.

POSSESSION OF COAL MINES

MAY 7, 1945.

By virtue of the authority vested in me by the President of the United States by Executive Order No. 9548, dated May 3, 1945, and having determined that a strike or work stoppage has occurred at the coal mines in the State of Virginia operated by the Great Valley Anthracite Coal Corp., McCoy, Virginia and the Superior Anthracite Mine, Inc., Baltimore, Maryland, I do hereby, effective forthwith, take possession of each of such coal mines, including any and all real and personal property, franchises, rights, facilities, funds and other assets used in connection with the operation of such mines.

The regulations for the operation of coal mines under Government control, as amended (8 F.R. 6655, 10712, 11344, 17339), heretofore issued by me, together with such further regulations as may from time to time be issued, shall in all respects be applicable to the mines possession of which is taken by this order.

The president of each such mining company (or if there is no president, its chief executive officer) is hereby, and until further notice, designated operating manager for the United States for the mine operated by such company. Unless advice to the contrary is received within ten days, the aforesaid president (or chief executive officer) shall be deemed to have accepted such designation. As operating manager for the United States, he is authorized and directed to operate such mine in accordance with the aforementioned regulations for the operation of coal mines under Government control, and such further regulations as may from time to time be issued, and to do all things necessary and appropriate for the operation of such mine and for the production, distribution and sale of its products.

The operating manager for the United States shall forthwith fly the flag of the United States at such mine and shall conspicuously display at such mine copies of a poster to be supplied by the Department of the Interior and reading:

NOTICE

In accordance with the proclamation of the President of the United States, Government possession of the coal mines of this mining company has been taken by order of the Secretary of the Interior.

HAROLD L. ICKES,
*Secretary of the Interior.*

[F. R. Doc. 45-7601; Filed, May 9, 1945; 9:33 a. m.]

## CIVIL AERONAUTICS BOARD.

[Docket No. 501 et al.]

AERO PICKUP SERVICE CORP.; SOUTHEASTERN STATES CASE

NOTICE OF HEARING

In the matter of the applications of Aero Pickup Service Corporation and other applicants for certificates and amendments of certificates of public convenience and necessity known as the Southeastern States case, Docket No. 501 et al., under section 401 of the Civil Aeronautics Act of 1938, as amended.

Notice is hereby given, pursuant to the Civil Aeronautics Act of 1938, as amended, particularly sections 401 and 1001 of said act, that a hearing in the above-entitled proceeding is assigned to be held on May 28, 1945, at 10 a. m. (eastern war time), at Sedgefield Inn, Greensboro, N. C., before Examiners Ross I. Newmann and Curtis C. Henderson.

Dated: Washington, D. C., May 7, 1945.

By the Civil Aeronautics Board.

[SEAL] FRED A. TOOMBS,
*Secretary.*

[F. R. Doc. 45-7610; Filed, May 9, 1945; 11:08 a. m.]

[Docket No. 1885]

AERO-TRANSPORTES, S. A.

NOTICE OF HEARING

In the matter of the application of Aero-Transportes, S. A., for a temporary foreign air carrier permit under section 402 of the Civil Aeronautics Act of 1938, as amended, authorizing use of the airport at Brownsville, Texas, for one year.

Notice is hereby given, pursuant to the Civil Aeronautics Act of 1938, as amended, particularly sections 402 and 1001, that a hearing in the above-entitled proceeding is assigned to be held on May 12, 1945, at 2:00 p. m. (eastern war time) in Room 5132, Commerce Building, Washington, D. C., before Examiner Ferdinand D. Moran.

Dated: Washington, D. C., May 8, 1945.

By the Civil Aeronautics Board.

[SEAL] FRED A. TOOMBS,
*Secretary.*

[F. R. Doc. 45-7678; Filed, May 9, 1945; 11:49 a. m.]

## FEDERAL POWER COMMISSION.

[Docket No. IT-5948]

ARKANSAS POWER & LIGHT CO. AND ARKANSAS GENERAL UTILITIES CO.

NOTICE OF APPLICATION

MAY 8, 1945.

Notice is hereby given that on May 7, 1945, a joint application was filed with the Federal Power Commission, pursuant to section 203 (a) of the Federal Power Act, by Arkansas Power & Light Company, a corporation organized under the laws of the State of Arkansas and doing business in the States of Arkansas and Louisiana with its principal business office at Pine Bluff, Arkansas, and Arkansas General Utilities Company, a corporation organized under the laws of the State of Arkansas and doing business in said State, with its principal business office in Warren, Arkansas, seeking an order authorizing the sale by Arkansas General Utilities Company of all its facil-